

MUTUAL NON-DISCLOSURE AGREEMENT

Standard Corporate Confidentiality Agreement

This Mutual Non-Disclosure Agreement (the "Agreement") is entered into and made effective as of _____ (the "Effective Date"), by and between the participating parties outlined below:

Party A: _____

Address: _____

Party B: _____

Address: _____

Party A and Party B may collectively be referred to as the "Parties" or individually as a "Party."

WHEREAS, the Parties desire to evaluate a potential business relationship or engage in discussions concerning a mutual business purpose (the "Purpose"); and

WHEREAS, in connection with the Purpose, either Party (the "Disclosing Party") may disclose to the other Party (the "Receiving Party") certain proprietary, technical, financial, or business information that is confidential in nature.

NOW, THEREFORE, in consideration of the mutual covenants contained herein, the Parties agree as follows:

- 1. Definition of Confidential Information.** For purposes of this Agreement, "Confidential Information" shall include all information or material that has or could have commercial value or other utility in the business in which Disclosing Party is engaged. If Information is in written form, the Disclosing Party shall label or stamp the materials with the word "Confidential" or some similar warning. If Information is transmitted orally, the Disclosing Party shall promptly provide a writing indicating that such oral communication constituted Confidential Information.
- 2. Exclusions from Confidentiality.** Receiving Party's obligations under this Agreement do not extend to information that is: (a) publicly known at the time of disclosure or subsequently becomes publicly known through no fault of the Receiving Party; (b) discovered or created by the Receiving Party before disclosure by Disclosing Party; (c) learned by the Receiving Party through legitimate means other than from the Disclosing Party or Disclosing Party's representatives; or (d) is disclosed by Receiving Party with Disclosing Party's prior written approval.
- 3. Obligations of Receiving Party.** Receiving Party shall hold and maintain the Confidential Information in strictest confidence for the sole and exclusive benefit of the Disclosing Party. Receiving Party shall carefully restrict access to Confidential Information to employees, contractors, and third parties as is reasonably required and shall require those persons to sign nondisclosure restrictions at least as protective as those in this Agreement. Receiving Party shall not, without prior written approval of Disclosing Party, use for Receiving Party's own benefit, publish, copy, or otherwise disclose to others, or permit the use by others for their benefit or to the detriment of Disclosing Party, any Confidential Information.

4. **Term and Duration.** The non-disclosure provisions of this Agreement shall survive the termination of this Agreement and Receiving Party's duty to hold Confidential Information in confidence shall remain in effect for a period of **three (3) years** from the date of disclosure, or until such time as Disclosing Party releases Receiving Party from such obligation in writing.

5. **Return of Materials.** Upon the written request of the Disclosing Party, the Receiving Party shall immediately return or destroy all original and copies of the Confidential Information, including any notes, summaries, or analyses derived therefrom, and provide written certification of such destruction.

6. **Governing Law.** This Agreement shall be construed, interpreted, and governed by the laws of the jurisdiction in which the Disclosing Party's principal place of business is located, without regard to its conflict of law principles.

IN WITNESS WHEREOF, Party A has executed
this Agreement.

IN WITNESS WHEREOF, Party B has executed
this Agreement.

By: (Authorized Signature)

Name: _____

Title: _____

Date: _____

By: (Authorized Signature)

Name: _____

Title: _____

Date: _____